CITY OF OPA-LOCKA

"The Great City"

Clerk's Action Summary Minutes
Regular Commission Meeting
February 25, 2009
7:00 p.m.
City Commission Chambers
777 Sharazad Boulevard
Opa-locka, FL 33054

1. CALL TO ORDER:

Mayor Joseph L. Kelley called the meeting to order at 7:02 p.m. on Wednesday, February 25, 2009 in the City Commission Chambers, 777 Sharazad Boulevard, Opa-locka, Florida 33054.

2. ROLL CALL:

The following members of the City Commission were present: Commissioner Dorothy Johnson, Vice Mayor Myra L. Taylor, Commissioner Timothy Holmes and Mayor Joseph L. Kelley. Also in attendance were: Interim City Manager Bryan K. Finnie, City Attorney Burnadette Norris-Weeks and Assistant City Clerk Joanna Flores. Commissioner Rose Tydus arrived at 7:11 p.m. and City Clerk Deborah S. Irby was not in attendance.

3. INVOCATION:

The Invocation was delivered by Mayor Joseph L. Kelley.

4. PLEDGE OF ALLEGIANCE:

The Pledge of Allegiance was recited in unison.

5. APPROVAL OF AGENDA:

Clerk Flores advised of the request to amend the agenda to include the following resolutions under item 12 – new items:

12-1: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, CONFIRMING THE ACCEPTANCE OF COMMUNITY DEVELOPMENT BLOCK GRANTS FUNDS FROM THE MIAMI-DADE COUNTY OFFICE OF COMMUNITY AND ECONOMIC DEVELOPMENT (OCED) FOR FISCAL YEARS 2002-2009 UP TO A MAXIMUM AMOUNT OF ONE MILLION TWO HUNDRED EIGHTY TWO THOUSAND DOLLARS ($1,282,000.00) FOR THE CONSTRUCTION AND RENOVATIONS OF

SHERBONDY PARK AND FOR THE CONSTRUCTION OF A GYMNASIUM AND SWIMMING POOL; FURTHER CONFIRMING THE AUTHORIZATION FOR THE CITY MANAGER TO ENTER INTO AND EXECUTE AN AGREEMENT WITH THE OCED TO EXTEND THE CONTRACT TERM FROM JANUARY 1, 2009 TO DECEMBER 31, 2010, IN A CONTRACT FORM ACCEPTABLE TO THE CITY ATTORNEY. *Sponsored by C.M.*

It was moved by Vice Mayor Taylor, seconded by Commissioner Johnson to amend the agenda to include the above resolution as item 12-1.

There being no discussion, the motion passed by a 4-0 vote.

Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Not present
Vice Mayor Taylor	Yes
Mayor Kelley	Yes

12-2: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, ACCEPTING AND CONFIRMING A COMMUNITY DEVELOPMENT BLOCK GRANT FROM THE MIAMI-DADE COUNTY OFFICE OF COMMUNITY AND ECONOMIC DEVELOPMENT IN THE TOTAL AMOUNT OF SIX HUNDRED EIGHTY ONE THOUSAND NINE HUNDRED AND ELEVEN DOLLARS ($681,911.00) FOR THE ALI-BABA AVENUE WEST STREET IMPROVEMENT AND BEAUTIFICATION PROJECT FROM 27TH AVENUE TO DOUGLAS ROAD; FURTHER AUTHORIZING THE CITY MANAGER TO EXECUTE THE NECESSARY AGREEMENT TO EFFECTUATE THE AWARD IN A CONTRACT FORM ACCEPTABLE TO THE CITY ATTORNEY. *Sponsored by C.M.*

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to amend the agenda to include the above resolution as item 12-2.

There being no discussion, the motion passed by a 4-0 vote.

Commissioner Johnson	Yes
Commissioner Tydus	Not present
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Mayor Kelley	Yes

12-3: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, CONFIRMING THE ACCEPTANCE OF A COMMUNITY DEVELOPMENT BLOCK GRANT FOR FY 2007 FROM THE MIAMI-DADE COUNTY OFFICE OF COMMUNITY AND ECONOMIC DEVELOPMENT IN THE AMOUNT OF TWO HUNDRED THOUSAND

DOLLARS ($200,000.00) FOR RENOVATION AND INFRASTRUCTURE IMPROVEMENTS TO SEGAL PARK AND FURTHER CONFIRMING THE AUTHORIZATION OF THE CITY MANAGER TO ENTER INTO AN AGREEMENT WITH MIAMI-DADE COUNTY IN A CONTRACT FORM ACCEPTABLE TO THE CITY ATTORNEY. *Sponsored by C.M.*

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to amend the agenda to include the above resolution as item 12-3.

There being no discussion, the motion passed by a 4-0 vote.

Commissioner Tydus	Not present
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Mayor Kelley	Yes

12-4: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA PIGGYBACKING THE AGREEMENT BETWEEN AMERICAN TRAFFIC SOLUTIONS, INC., AND THE CITY OF HIALEAH, FLORIDA, HERETO ATTACHED AS EXHIBIT "A", FOR A TRAFFIC SAFETY CAMERA PROGRAM AND FURTHER AUTHORIZING THE CITY MANAGER TO ENTER INTO AN AGREEMENT WITH AMERICAN TRAFFIC SOLUTIONS, INC., IN A CONTRACT FORM ACCEPTABLE TO THE CITY ATTORNEY. *Sponsored by C.M.*

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to amend the agenda to include the above resolution as item 12-4.

There being no discussion, the motion passed by a 4-0 vote.

Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Not present
Mayor Kelley	Yes

12-5: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, RESCINDING RESOLUTION NO. 08-7361 AND AUTHORIZING THE CITY MANAGER TO SETTLE THE PENDING LAWSUIT BROUGHT BY FORMER POLICE CHIEF JAMES WRIGHT AND FURTHER AUTHORIZING THE CITY MANAGER TO ISSUE A FORM 1099 IN CONNECTION WITH PAYMENT IN EXCHANGE FOR A RELEASE AGREEMENT PROVIDING FOR INDEMNIFICATION TO THE CITY. *Sponsored by C.M.*

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to amend the agenda to include the above resolution as item 12-5.

There being no discussion, the motion passed by a 4-0 vote.

Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Not present
Vice Mayor Taylor	Yes
Mayor Kelley	Yes

6. APPROVAL OF CONSENT AGENDA AND PULL LIST (deferrals and deletions):

Vice Mayor Taylor asked for clarification as it related to agenda item 12-5 regarding the settlement agreement with former police chief James Wright because it was her understanding that the City Manager would meet individually with the members of the Commission and the City Attorney would conduct an executive meeting on this item.

Mayor Kelley advised Vice Mayor Taylor that agenda item 12-5 would be discussed separately when it comes up. He assumed that the City Manager had discussed this item individually with all members of the Commission; however, Vice Mayor Taylor indicated that the City Manager had not discussed that item with her.

At a previous meeting, Attorney Weeks had asked about an executive session and she indicated at that time that the executive meeting would have to be announced at that meeting if in fact the Commission decided to do that. The response was "no" because they would have had to make the announcement prior to the meeting according to Florida Statutes in order to have the executive closed session. Attorney Weeks remembered from the last meeting that the City Manager was going to meet with the Commission individually and it would come back before them.

Commissioner Holmes recalled the executive session being mentioned at a previous meeting; however, one of the members of the Commission stated that the executive session was not needed.

After seeing this item being placed on the agenda, Mayor Kelley said he assumed the City Manager had discussed it with everyone; however, the reason why the executive meeting could not be announced during that same meeting was because there wasn't enough time to advertise in the Miami Herald.

Manager Finnie stated that he did not have the opportunity to communicate with everyone because the issue with Mr. Wright was resolved late last week.

Commissioner Johnson pulled agenda item 15-3 and Mayor Kelley pulled agenda item 15-9.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to approve the agenda, consent agenda and pull list.

There being no discussion, the motion passed by a 5-0 vote.

Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Mayor Kelley	Yes

7. AWARDS/PROCLAMATIONS/ACKNOWLEGEMENTS:

Mayor Kelley acknowledged the Miami-Dade Fire Rescue Department in the audience and invited them to come forward.

Division Chief Dan Whu, M.D. of the Miami-Dade Fire Rescue Department North District came forward and stated that as requested Miami-Dade Fire Rescue Department had presentation at the President Barack Obama Street naming Ceremony. He further offered services to the city from a Fire Rescue perspective.

Mayor Kelley inquired about the CERT Training in order to schedule some individuals for that training.

Chief Whu advised that Miami-Dade Fire Rescue Department was not conducting CERT training; however, the Office of Emergency Management which is a separate department is now handling that training. He provided his business card to the City Clerk so that he can refer the city to the Office of Emergency Management for the CERT training.

Mayor Kelley asked, are there any upcoming CPR classes for the city?

Commissioner Holmes said there are no future CPR classes scheduled for the city at this time.

8. APPROVAL OF MINUTES:

Regular Commission Meeting – February 11, 2009

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to approve the minutes of the Regular Commission Meeting of February 11, 2009.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Holmes	Yes
Commissioner Johnson	Yes

Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Mayor Kelley	Yes

9. DISTRICT ONE – COUNTY COMMISSIONER REPORT:

Mark Brown, Assistant to County Commissioner Barbara Jordan, District 1, came forward and publicly thanked the City of Opa-locka for a success on the street naming ceremony in honor of President Barack Obama. He further provided an update on the Mom & Pop grant applications for businesses; summer youth program initiative; and the beautification and rehabilitation program in the city.

Vice Mayor Taylor asked about any programs through the County Commissioners Office and the City of Opa-locka dealing with foreclosures.

Mr. Brown stated that there is literature available in the office; however, realizing that this is a problem throughout the country, he is scheduled to meet with Commissioner Jordan next week regarding foreclosure.

Manager Finnie advised that the city is working on two foreclosure initiatives; one is for assistance and the other is to put a plan in place for the City of Opa-locka. The county has received a large sum of money from the federal government through the State of Florida for foreclosure. The county submitted their plan to the State of Florida but they have yet to get a sign off on that plan. The city is working with developers to put a plan in place so that when those dollars are released the city would be first in line.

As of February 20, 2009, Vice Mayor Taylor stated that she has a list of 35 foreclosures in the City of Opa-locka. She said there is a foreclosure attorney who rendered himself at the city's disposal to attempt to assist these homeowners out of foreclosure. She advised the City Manager and Mr. Brown that she would provide them with the attorney's information but it is strictly for Opa-locka. Additionally, the attorney is willing to make a presentation to the City of Opa-locka.

Mayor Kelley said he previously asked about the number of foreclosures in Opa-locka and was told by the City Manager that the city had identified approximately 60 properties in foreclosure, and at that time the City Manager was looking at an outside entity to do assessments. He asked for an update on that process?

Manager Finnie stated that he is working with two companies; one that would assess individuals going into foreclosure and provide technical assistance and the other which is actually a real estate company working with the list of foreclosures to find ways to short sales or a number of mechanisms to keep people in their homes.

Mayor Kelley understood what Manager Finnie was doing; however, his issue is the difference in the numbers of foreclosures as provided by Vice Mayor and the City Manager. Also, he had not heard anything else about the foreclosure issue.

Manager Finnie stated his information comes from the fiscal department which track the banks and mortgage liens to provide the internal list which is generated through the city.

Commissioner Johnson thanked Commissioner Jordan & staff for their assistance and contributions towards the success of the street naming dedication in honor of President Barack Obama; however, she is concerned about the sign facing east/west when the street runs north/south which is improper.

She continued by expressing her concerns relating to parking on the medians along NW 32nd Avenue from NW 119th Street to NW 135th Street and suggested that "no parking" signs be place along the medians. Additionally, she noticed advertising signage all over the medians. Secondly, she suggested that the county look into the vacant county owned properties in Opa-locka with the possibility of providing temporary housing to the homeless in those homes.

According to a previous request from the Commission, Mr. Brown stated that he forwarded to the City Manager the listing of county departments to assist the city (i.e. public works which is responsible for the signage, FDOT and some others).

Commissioner Holmes informed Commissioner Johnson that the President Barack Obama street signage is facing north/south which is correct.

Commissioner Johnson suggested that the City Manager look into the signage before leaving the meeting.

Commissioner Tydus asked, is the Jackson North facility on NW 27th Avenue still operational and providing services?

Mr. Brown advised that the facility is still providing services; however, due to budget cuts, staff was moved to other locations.

Commissioner Tydus asked, does the county own that facility?

Mr. Brown stated that Jackson Health is a separate entity but he doesn't know if the physical building is owned by the county.

Commissioner Tydus requested that Mr. Brown report back to the Commission on this issue.

Mayor Kelley expressed his concerns to Mr. Brown regarding the process being used for the stimulus in terms of the structure used for future allocations that may come down because the use of population does not help or serve the city best.

10. PUBLIC PRESENTATION:

1. Dana Toolen of Emergency Communications Network, Inc., 9 Sunshine Boulevard, Ormond Beach, FL came forward and conducted a demonstration and presentation on the Emergency Communication Network's CodeRED Emergency Notification system for high speed outbound telephone community notification.

Vice Mayor Taylor expressed her concerns relating to the homeless veterans throughout Miami-Dade County and the City of Opa-locka. She spoke on incidents which occurred in November/December 2008 where four homeless veterans were beaten to death in Miami-Dade County while trying to find shelter at a bus stop. Charles Buford, Founder and Executive Director of Make a Wish Veterans and his Board of Directors have informed her that they are short $5,000.00 to complete the burial cost of these four veterans. She individually asked the Commission along with the concerned citizens of Opa-locka, the business community and veterans at large to support her in helping to give these honored men a decent burial.

10a. CITIZENS FORUM:

11. ACTION ITEMS (items from consent agenda pull list):

15-3: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, ACCEPTING THE PROPOSAL FROM S. DAVIS & ASSOCIATES, INC. IN RESPONSE TO RFP NO. 08-1231 FOR CONSTRUCTION AUDITING SERVICES; FURTHER AUTHORIZING THE CITY MANAGER TO ENTER INTO AND EXECUTE AN AGREEMENT WITH S. DAVIS & ASSOCIATES, INC., IN CONTRACT FORM ACCEPTABLE TO THE CITY ATTORNEY, PAYABLE FROM ACCOUNT NO. 17-513320. *Sponsored by C.M.*

The above resolution was read by title by Attorney Weeks.

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to pass the above resolution.

After speaking with the City Manager, Commissioner Johnson noticed that the verbiage in the resolution was to be executed within 30 days upon approval; however, she is concerned when contracts don't have an end date. She proposed an amendment to the resolution for the services to be completed within 90 days. For future references, all resolutions for contracts must have a closing date.

Attorney Weeks read the amendment to the resolution which would be added in Section 3 as follows: "to enter into and execute an agreement with S. Davis & Associates, Inc. for construction auditing services to the city to be completed within 90 days upon execution of contract".

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to amend the resolution to add the verbiage and read into the record by Attorney Weeks to Section 3.

There being no discussion on the amendment, the motion passed by a 5-0 vote.

Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Mayor Kelley	Yes

There being no discussion on the original motion, the motion passed by a 5-0 vote.

Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Mayor Kelley	Yes

15-9: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO PURCHASE TEN (10) NEW VEHICLES FOR THE OPA-LOCKA POLICE DEPARTMENT UTILIZING THE FLORIDA SHERIFF'S ASSOCIATION CONTRACT BID ANNOUNCEMENT #08-16-0908 AND FURTHER AUTHORIZING THAT THE VEHICLES BE FINANCED THROUGH THE FORD MUNICIPAL FINANCE PROGRAM AT AN ANNUAL COST NOT TO EXCEED $67,476.36, PAYABLE FROM ACCOUNT NO. 21-521648. *Sponsored by C.M.*

The above resolution was read by title by Attorney Weeks.

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to pass the above resolution.

Commissioner Johnson expressed her concerns relating to this resolution being the third set of vehicles since 2002 for the Police Department. She asked, what is in place for driver safety after an accident or incident?

Manager Finnie stated that he didn't believe the loss of vehicle is largely due to accidents because according to the state guidelines, vehicles have to be recycled after 5 years/30,000 miles and the increased number of staff which creates a demand for the vehicles. The City of Opa-locka has 41 certified police officers and 24 vehicles. As a result of the acquisition of these vehicles, there are 4 vehicles that are leased and the net result of acquiring the 10 vehicles is a fleet of 30 vehicles with 41 certified police officers on staff.

Due to the lack of police vehicles at the Opa-locka Police Department, Commissioner Holmes stated that the police officers are taking turns utilizing the vehicles shift after shift causing excessive wear and tear; therefore, the police department is in need of additional vehicles for the number of certified police officers patrolling the streets.

Vice Mayor Taylor asked, is the city selling the cars to bring in revenue to the police department?

Manager Finnie stated that the vehicles being turned in are on leases; but there's a certain portion of the leased vehicles the city must maintain because those cars are used by special units and must be changed on a regular basis.

After hearing several different translations, Mayor Kelley stated that originally this item was on the agenda before and was pulled. One of the reasons the city needed the vehicles was because the agreement with some of the officers was to have take home vehicles. However, that's not the case anymore because now he's hearing attrition and more manpower.

Manager Finnie explained that the first time this item was raised with the Commission, he had been in the job for only a few days and he tabled it. This is the first time he reviewed this item and made statements as to why the vehicles are needed.

Mayor Kelley asked, so then the cars an officer gets may not be a part of any package for trying to attract people. As a part of trying to attract officers since the city could not meet dollar for dollar was to give officers take home vehicles as an incentive; but what he's hearing now, that it is no longer a part of the package.

Manager Finnie stated that he believes take home vehicles is a part of the package; however, when his team sat down and looked at it what they focused on with blinders was the cost benefit analysis. Should the city have the vehicles, those who are certified police officers will have the opportunity to take the cars home.

Mayor Kelley expressed his frustration with not having enough police vehicles for all police officers.

Manager Finnie stated that there are 15 take home vehicles because not all of them are not take home vehicles.

Although Mayor Kelley understood that the city was getting the 2 expeditions for the same cost as the regular cars, he was challenged as to why the city could not get 1 expedition as oppose to 2 and have 9 regular cars to patrol the streets. Additionally, Mayor Kelley expressed his concerns relating to the driving of vehicles and making sure there aren't any damages to the car?

Acting Chief of Police Rodney Ballentine of the Opa-locka Police Department came forward and stated that the police department does have a take home policy which the officers signs for. Also, the supervisor conducts vehicle inspections.

Vice Mayor Taylor stated that the resolution was not clear and asked whether this item was time sensitive.

Manager Finnie advised that this item was not time sensitive.

Vice Mayor Taylor explained that the resolution was not clear.

There being no further discussion, the motion passed by a 3-2 vote.

Vice Mayor Taylor	No
Commissioner Holmes	Yes
Commissioner Johnson	No
Commissioner Tydus	Yes
Mayor Kelley	Yes

Commissioner Holmes stated that the Opa-locka Police Department is in need of these additional vehicles for the safety of the community.

12. NEW ITEMS:

12-1: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, CONFIRMING THE ACCEPTANCE OF COMMUNITY DEVELOPMENT BLOCK GRANTS FUNDS FROM THE MIAMI-DADE COUNTY OFFICE OF COMMUNITY AND ECONOMIC DEVELOPMENT (OCED) FOR FISCAL YEARS 2002-2009 UP TO A MAXIMUM AMOUNT OF ONE MILLION TWO HUNDRED EIGHTY TWO THOUSAND DOLLARS ($1,282,000.00) FOR THE CONSTRUCTION AND RENOVATIONS OF SHERBONDY PARK AND FOR THE CONSTRUCTION OF A GYMNASIUM AND SWIMMING POOL; FURTHER CONFIRMING THE AUTHORIZATION FOR THE CITY MANAGER TO ENTER INTO AND EXECUTE AN AGREEMENT WITH THE OCED TO EXTEND THE CONTRACT TERM FROM JANUARY 1, 2009 TO DECEMBER 31, 2010, IN A CONTRACT FORM ACCEPTABLE TO THE CITY ATTORNEY. *Sponsored by C.M.*

The above resolution was read by title by Attorney Weeks.

It was moved by Commissioner Holmes, seconded by Commissioner Johnson to pass the resolution.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Mayor Kelley	Yes

12-2: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, ACCEPTING AND CONFIRMING A COMMUNITY DEVELOPMENT BLOCK GRANT FROM THE MIAMI-DADE COUNTY OFFICE OF COMMUNITY AND ECONOMIC DEVELOPMENT IN THE TOTAL AMOUNT OF SIX HUNDRED EIGHTY ONE THOUSAND NINE HUNDRED AND ELEVEN DOLLARS ($681,911.00) FOR THE ALI-BABA AVENUE WEST STREET IMPROVEMENT AND BEAUTIFICATION PROJECT FROM 27TH AVENUE TO DOUGLAS ROAD; FURTHER AUTHORIZING THE CITY MANAGER TO EXECUTE THE NECESSARY AGREEMENT TO EFFECTUATE THE AWARD IN A CONTRACT FORM ACCEPTABLE TO THE CITY ATTORNEY. *Sponsored by C.M.*

The above resolution was read by title by Attorney Weeks.

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to pass the above resolution.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Mayor Kelley	Yes

12-3: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, CONFIRMING THE ACCEPTANCE OF A COMMUNITY DEVELOPMENT BLOCK GRANT FOR FY 2007 FROM THE MIAMI-DADE COUNTY OFFICE OF COMMUNITY AND ECONOMIC DEVELOPMENT IN THE AMOUNT OF TWO HUNDRED THOUSAND DOLLARS ($200,000.00) FOR RENOVATION AND INFRASTRUCTURE IMPROVEMENTS TO SEGAL PARK AND FURTHER CONFIRMING THE AUTHORIZATION OF THE CITY MANAGER TO ENTER INTO AN AGREEMENT WITH MIAMI-DADE COUNTY IN A CONTRACT FORM ACCEPTABLE TO THE CITY ATTORNEY. *Sponsored by C.M.*

The above resolution was read by title by Attorney Weeks.

It was moved by Commissioner Holmes, seconded by Vice Mayor Taylor to pass the above resolution.

Commissioner Johnson asked, what line item would reflect the $200,000.00 since it's for FY 2007 and the city is currently in FY 2009. Additionally, all monies coming into the city should bear the account number it is going into.

Manager Finnie explained that the dollars in question on this item was approved by OCED in 2007 and the city received that grant award; but in order to retain to those dollars, the city must retain a new resolution in 2008 accepting those dollars once again.

Attorney Weeks advised that the resolution is confirming the acceptance because the city has already accepted the grant in 2007.

With the OCED process, Manager Finnie stated that even though the city received the money in 2007, the city must have the contract extended. From a cash flow standpoint, the city has not received the actual cash yet; the dollars do not come in until the city commences the project, and at that point and time there will be an accounting for the dollars.

Commissioner Johnson directed that the City Manager provide her with the line item for the $200,000.00.

Manager Finnie stated that the city would account for the money upon receipt of the money; but he cannot put these monies into the budget until the money is received.

Vice Mayor Taylor asked, would this amount of money cover the renovations and infrastructure improvement for Segal Park?

Manager Finnie advised that the $200,000.00 will not fully fund the project.

There being no further discussion, the motion passed by a 5-0 vote.

Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Mayor Kelley	Yes

12-4: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA PIGGYBACKING THE AGREEMENT BETWEEN AMERICAN TRAFFIC SOLUTIONS, INC., AND THE CITY OF HIALEAH, FLORIDA, HERETO ATTACHED AS EXHIBIT "A", FOR A TRAFFIC SAFETY CAMERA PROGRAM AND FURTHER AUTHORIZING THE CITY MANAGER TO ENTER INTO AN AGREEMENT WITH AMERICAN TRAFFIC SOLUTIONS, INC., IN A CONTRACT FORM ACCEPTABLE TO THE CITY ATTORNEY. *Sponsored by C.M.*

The above resolution was read by title by Attorney Weeks.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the above resolution.

There being no discussion, the motion passed by a 4-0 vote.

Vice Mayor Taylor	Yes
Commissioner Holmes	Out of room
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Mayor Kelley	Yes

12-5: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, RESCINDING RESOLUTION NO. 08-7361 AND AUTHORIZING THE CITY MANAGER TO SETTLE THE PENDING LAWSUIT BROUGHT BY FORMER POLICE CHIEF JAMES WRIGHT AND FURTHER AUTHORIZING THE CITY MANAGER TO ISSUE A FORM 1099 IN CONNECTION WITH PAYMENT IN EXCHANGE FOR A RELEASE AGREEMENT PROVIDING FOR INDEMNIFICATION TO THE CITY. *Sponsored by C.M.*

The above resolution was read by title by Attorney Weeks.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the above resolution.

Commissioner Johnson asked for clarification on the above resolution.

Attorney Weeks explained that this resolution would rescind the previous resolution completely and this is the new resolution with the form 1099.

There being no further discussion, the motion passed by a 4-0 vote.

Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Out of room
Mayor Kelley	Yes

13. PLANNING & ZONING:

A. HEARINGS:

B. APPEALS:

14. ORDINANCES/RESOLUTIONS/PUBLIC HEARING:

A. FIRST READING:

1. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA; REPEALING ORDINANCE 07-02, CODIFIED AS CHAPTER 7, ARTICLE I, SECTION 7-12 OF THE OPA-LOCKA CODE OF ORDINANCES ENTITLED "APARTMENT BUILDINGS WITH TWENTY FOUR UNITS OR MORE"; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by D.J.*

The above ordinance was read by title by Attorney Weeks.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the above ordinance on first reading.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Mayor Kelley	Yes

B. SECOND READING/PUBLIC HEARING:

1. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA APPROVING THE DUAL DESIGNATION OF NW 32ND AVENUE FROM THE 127TH STREET (CANAL NORTH) TO NW 135TH STREET AS "THE HONORABLE JOHN RILEY AVENUE"; PROVIDING FOR REPEAL OF ALL ORDINANCES IN CONFLICT; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE *(first reading held on February 11, 2009). Sponsored by T.H.*

The above ordinance was read by title by Attorney Weeks.

Mayor Kelly opened the floor for a public hearing. There being no persons to speak on the public hearing, the public hearing was closed.

It was moved by Commissioner Holmes, seconded by Commissioner Johnson to pass the above ordinance.

Mayor Kelley turned the gavel to Vice Mayor Taylor and stepped out of the room.

Pursuant to the ordinance, Attorney Weeks explained that the City Commission would have to enter into discussion as to the contributions and whether or not any fees are owed by the person in question.

Commissioner Holmes provided a brief overview of John Riley's contributions to the city and community and indicated that no monies are owed to the city by Mr. Riley.

There being no discussion, the motion passed by a 3-1 vote.

Commissioner Tydus	No
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Vice Mayor Taylor	Yes
Mayor Kelley	Out of room

2. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA APPROVING THE DUAL DESIGNATION OF PERI STREET FROM SEAMAN AVENUE TO NW 27TH AVENUE AS "THE HONORABLE ROBERT S. KNAPP STREET"; PROVIDING FOR REPEAL OF ALL ORDINANCES IN CONFLICT; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE *(first reading held on February 11, 2009). Sponsored by T.H.*

The above resolution was read by title by Attorney Weeks.

Vice Mayor Taylor opened the floor for a public hearing. There being no persons to speak on the public hearing, the public hearing was closed.

It was moved by Commissioner Holmes, seconded by Commissioner Johnson to pass the above ordinance.

Pursuant to the ordinance, Attorney Weeks explained that the City Commission would have to enter into discussion as to the contributions and whether or not any fees are owed by the person in question.

Commissioner Holmes provided a brief overview of Robert S. Knapp's contributions to the city and community and indicated that no monies are owed to the city by Mr. Knapp.

There being no further discussion, the motion passed by a 4-0 vote.

Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Mayor Kelley	Out of room

C. RESOLUTION(S):

15. ADMINISTRATION:

CONSENT AGENDA:

Items listed under the Consent Agenda are viewed to be routine and the recommendation will be enacted by one motion in the form listed below. If discussion is desired, the item(s) will be removed from the Consent Agenda and will be considered separately. All Consent Agenda Resolutions will be read by title.

1. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, SUPPORTING THE MIAMI-DADE COUNTY PUBLIC SCHOOLS LEGISLATIVE FUNDING INITIATIVE BY REQUESTING THAT THE FLORIDA LEGISLATURE ADOPT ADEQUATE FUNDING LEVELS FOR EDUCATION AND FURTHER DIRECTING THE CITY CLERK TO FORWARD THIS RESOLUTION TO MIAMI-DADE COUNTY PUBLIC SCHOOLS SUPERINTENDENT AND THE MIAMI-DADE COUNTY LEGISLATIVE DELEGATION. *Sponsored by J.K.*

2. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO ISSUE A REQUEST FOR PROPOSALS (RFP) FOR UTILITY BILL PROCESSING. *Sponsored by C.M.*

4. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO ISSUE A REQUEST FOR PROPOSALS (RFP) FOR QUALIFIED INDIVIDUALS OR ENTITIES TO SERVE AS AGENT OF RECORD FOR CITY OF OPA-LOCKA EMPLOYEES AND OFFICIALS FOR HEALTH, LIFE, AND DENTAL INSURANCE COVERAGE. *Sponsored by C.M.*

5. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO ISSUE A REQUEST FOR PROPOSALS (RFP) FOR CITY WEBSITE DESIGN SERVICES. *Sponsored by C.M.*

6. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO ENTER INTO AND EXECUTE AN AGREEMENT WITH OMEGA CONTRACTING, INC. FOR DEMOLITION OF UNSAFE STRUCTURES LOCATED AT 2141 AND 2151 ALI-BABA AVENUE AT A COST OF SEVENTEEN THOUSAND SEVEN HUNDRED EIGHTY DOLLARS ($17,780.00), IN A CONTRACT FORM ACCEPTABLE TO THE CITY ATTORNEY AND PAYABLE FROM ACCOUNT NO. 44-541822. *Sponsored by C.M.*

7. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO ENTER INTO AND EXECUTE AN AGREEMENT WITH ABURI LLC, FOR DEMOLITION OF UNSAFE STRUCTURES LOCATED AT 2749 NW 131 STREET AT A COST OF TWENTY SEVEN THOUSAND DOLLARS ($27,000.00), IN A CONTRACT FORM ACCEPTABLE TO THE CITY ATTORNEY AND PAYABLE FROM ACCOUNT NO. 44-541822. *Sponsored by C.M.*

8. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO ISSUE A REQUEST FOR PROPOSAL (RFP) FOR EMERGENCY EQUIPMENT FOR TEN (10) NEW POLICE DEPARTMENT VEHICLES AND TO FURTHER AUTHORIZE THE CITY MANAGER TO PURCHASE NECESSARY EQUIPMENT FROM THE MOST RESPONSIVE AND RESPONSIBLE BIDDER IN AN AMOUNT NOT TO EXCEED SEVENTY-SEVEN THOUSAND TWO HUNDRED AND EIGHTY FOUR DOLLARS AND THIRTY EIGHT CENTS ($77,284.38), PAYABLE FROM ACCOUNT NO. 21-521641. *Sponsored by C.M.*

The consent agenda resolutions were read by title by Attorney Weeks.

It was moved by Commissioner Holmes, seconded by Commissioner Johnson to approve the consent agenda.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Johnson	Yes
Commissioner Tydus	Yes
Commissioner Holmes	Yes
Mayor Kelley	Yes
Vice Mayor Taylor	Yes

Vice Mayor Taylor relinquished the gavel to Mayor Kelley. She voiced her concern relating to add on items which should only be for emergency items.

Mayor Kelley explained that the amended items came in after the printed agenda was complete and the City Manager deemed it necessary that these items couldn't wait for 2 more weeks. With regards to the OCED resolutions, those are usually time sensitive and not able to wait to the next commission meeting. When placing amended items on the agenda, he directed the City Manager to contact the Commission individually with the information.

Vice Mayor Taylor suggested that if the add on items are time sensitive, then perhaps some of the items on the agenda could be deferred to the next meeting to keep the agenda from being so long.

Commissioner Holmes suggested that the City Attorney and City Manager not submit items to be amended to the agenda unless it is an emergency.

Mayor Kelley said that the key is for the City Manager to have communication with the Commission when add on items do come up.

A. CITY MANAGER'S REPORT:

Manager Finnie commended all those involved in making the President Barack Obama Street naming Dedication Ceremony a success. Additionally, this event managed to get the city tremendous publicity for the City of Opa-locka.

He provided the Commission with an update on the implementation of the Strategic Plan. He announced that the Metropolitan Planning Organization (MPO) allocated approximately $342,000.00 for the city's Ali-baba Beautification Initiative which would be used for Phase I of the project; however, the total cost of that project is $6,000,000.00.

As it relates to the stimulus package, he said this is a great experience for the city because he believes the stimulus packages will start coming in higher frequency; therefore, the city will have to work as a team to cover all the meetings that need to be covered to make sure Opa-locka's request is paid attention to which is a matter of being consistent in lobbying and being at the right place at the right time to collect these dollars.

He further reported on the budget process which had recently begun and that information will be submitted to the Commission for review in March and April before going publicly with final recommendations.

Manager Finnie informed the Commission that starting in March they would be receiving monthly activity reports from all departments.

He requested assistance from the Commission as it relates to naming the new City Hall whether it be "City Hall", an "annex building" or "Municipal Administration".

The City Commission suggested that the City Manager consult with the Commission individually and go with the majority; however, in his opinion there could only be one Opa-locka Historic City Hall because there's some other potential uses for the building.

Commissioner Johnson thanked the City Manager and staff for the Street naming Dedication Ceremony and for the progress on the cleaning of the canals.

She continued by expressing her concerns regarding illegal dumping throughout the city; how the information is getting out to residents/businesses regarding the external painting of their property (i.e. yellow property on Opa-locka Boulevard and NW 22nd Avenue); signage on city's right of ways; vendors on NW 27th Avenue although it is prohibited; and utilizing the city's utility bill and newsletter to get information out to the citizens.

She further directed the City Clerk and City Attorney to wrap around their goals & objectives around the one vision for the city once the City Manager provides the timeline for the Strategic Plan and Vision. In the upcoming months, she directed the City Manager to start promoting the city's plan of action for hurricane preparedness. Lastly, she requested that the City Manager fast forward the Welcome Kit for the city and provide her with a time certain.

Commissioner Holmes requested an update on the complaints from citizens regarding parking on Curtiss Drive.

Manager Finnie stated that he had several meetings with the residents on Curtiss Drive to look at ways to adjust the parking and the issue is that he cannot get the residents to agree on any one solution. The city needs to be proud of the work done on Curtiss Drive; however, he really doesn't know how to solve the parking issue because the residents don't want to go in any one direction.

If the residents cannot come to an agreement on resolving the parking issue on Curtiss Drive, Commissioner Holmes suggested that the City Manager bring the information to the Commission in order to put a closure to the problem and give the residents on Curtiss Drive relief.

Commissioner Holmes asked for a report on his previous request for the City Manager to conduct a study on the sudden increase of complaints due to high water bills.

He continued by stating to the City Manager and City Attorney that he would like to find some type of relief for individuals out on the streets who want to work but do not have a High School Diploma/GED. Previously, he came up with some ideas for those individuals to pick up trash and with the new recycling program with the Miami-Dade County recyclable items can be turned into money which could assist in the cost of hiring these individuals. He expressed his concern with the homeless in Opa-locka and suggested that the city find a shelter for the homeless in Opa-locka; perhaps the city can find a grant and/or monies to find a building in Opa-locka to house the homeless in our community.

He further stated that he received numerous complaints regarding overgrown grass and trash at residential properties.

Vice Mayor Taylor stated that she has areas of focus that she works on and her areas of focus were determined when she was campaigning. The complaints of the citizens and what they'll like to see; one is public works and the other is the Burlington Street project from NW 27th Avenue to Opa-locka Boulevard. She expressed her concern relating to the poor condition of the road and flooding on Burlington Street. Also, the homeowners directly in front of the Old Water Plant who had complained about the ugliness, she personally went out to the site; so her area of focus is to make sure it's completed. As far as the inside is concerned, she is aware that the City Manager has to go through the bid process for demolition but at least in the front, the homeowners should see something nice.

With regards to the potholes on Burlington Street, Vice Mayor Taylor directed the City Manager to work on that street even if she has to go to the businesses on that street for assistance.

Lastly, her third area of concern is NW 22nd Avenue from NW 135th Street to NW 151st Street which includes the Triangle area.

She further requested the status and any future plans for Burlington Street.

Manager Finnie stated that the city released an RFP at the last commission meeting to hire a company to map out the underground infrastructure. Once the information is received, the city will solicit bids from a demolition company to demolish the plant. Additionally, the city will apply for monies from the state, county and Obama's stimulus plan to help build a facility to help generate 1.6 million dollars per year for the City of Opa-locka on the utility side and create jobs.

Vice Mayor Taylor provided Manager Finnie with a copy of the stimulus package since he didn't have a copy.

Commissioner Tydus asked for clarification on the random drug testing for employees.

Sharlene Boyd, Director of Human Resources for the City of Opa-locka came forward and stated that she needs to find a company that conducts drug testing. She pooled other cities HR directors to see who they are currently using in order to get a company that will do that for the city.

Since there's no plan in place, Manager Finnie advised that the drug testing for employees would have to go out for bid.

Mrs. Boyd said the process was stopped back when the administrative regulations were passed last March and that was the attorney's recommendation to the city at that time.

Commissioner Tydus suggested that the city get the drug testing in place immediately.

Mayor Kelley directed the City Manager to provide the Commission with a written report on what Mrs. Boyd just indicated and who she is referencing.

Mayor Kelley concern dealt with accountability because Commissioner Johnson mentioned the yellow building; and perhaps the City Manager's staff should give Vice Mayor Taylor money for providing a copy of the stimulus package which the City Manager should already have because staff was at a meeting on last Friday regarding the stimulus package, the website for obtaining a copy was provided, and yet a week later they don't have a copy of it.

He continued by asking for an update on the lighting throughout the city.

Lavelle Jenrette of the City of Opa-locka Public Works Department came forward and stated that Florida Power & Light recently finished the Segal Park area and his next area of concern is Perviz Avenue.

Mayor Kelley spoke about the letter he sent to Commissioner Moss regarding the stimulus package and the way it was handled through the MPO process based on population. The city will have to advocate for a different formula than using population as a criteria and that was the purpose of sending the letter to the Chairman of the MPO because he is concerned that the future allocation of dollars will come down using the same concept. In the letter, he indicated that he would like for them to look at using other criteria including the fact of the city's proximity to the airport as well as the high unemployment rate, and if the stimulus package is going to create jobs then obviously the city needs more than $342,000.00.

He expressed the importance of the 2010 Census in that population is used as criteria to allocate resources, therefore, the city must make sure everyone is counted.

He stated his concerns with Parks & Recreation because he is continuously receiving complaints from citizens.

As it relates to the stimulus package, Commissioner Holmes stated that the city would have to purchase or built a City Hall which would be an additional $8 – 10,000,000.00 for infrastructure which would create jobs.

Commissioner Johnson requested an update on the foreclosure of the Opa Hotel.

Manager Finnie stated that he received an offer from the owner of the building for $741,000.00 and he is still working on this issue.

Commissioner Johnson directed the City Manager to bring back at the next meeting a report on this issue.

B. ACCOUNTS PAYABLE:

The City Commission instructed the city to pay its bills.

16. OFFICIAL BOARD REPORTS:

17. CITY ATTORNEY'S REPORT:

Commissioner Johnson directed the City Attorney to bring back a resolution revising the recent resolution for the monument in order to start with the fundraising.

NOTE: This portion of the minutes is transcribed in verbatim per the request of Commissioner Johnson.

Commissioner Johnson: In your passing, I know that you have your rolodex that could be used to bring monies for infrastructure. So tap some resources, Tallahassee, Broward; whatever you can do because a part of your evaluation is going to be how much resources

you can bring to the city. So, I need you to tap and see what you can bring back to the city, ok.

NOTE: This concludes the verbatim portion of the minutes.

In following up on the water plant issue, Manager Finnie said he would have to put a team together to help facilitate the city moving forward because a decision will be critical in being successful in Tallahassee.

Vice Mayor Taylor asked for an update on the City Attorney working to bring the city's Code of Ordinances up to date.

Mayor Kelley said that another workshop would be held and the City Clerk was suppose to poll the Commission for a date to address any concerns dealing with the city's Charter and Code of Ordinances.

He directed the City Clerk to poll the Commission for the workshop date during early March preferably the first week.

Commissioner Tydus asked for clarification on the statement made by Commissioner Johnson relating to the City Attorney's evaluation coming up and her ability to raise funds.

Commissioner Johnson stated that in the City Attorney's rolodex, she may have individuals of legislators she may know that can assist with the infrastructure projects. She cannot put in a person's evaluation any dollar amount to raise; but she is looking for the appointed officials to bring revenue to the city.

Commissioner Tydus said she has never known any city attorney having fundraising a part of their job description and taking away from their legal.

In speaking about fundraising, Commissioner Johnson said she was speaking about the resolution for the monument and she directed the City Attorney to bring back an amended resolution in order to start raising funds now; but it doesn't call for the City Attorney to raise funds.

18. CITY CLERK'S REPORT:

19. MAYOR/COMMISSION REPORT:

Commissioner Johnson reported that she would meet with Legal Aid on March 4, 2009 on issues concerning Nile Garden residents; she participated and will be one of the representative's from Opa-locka to work with the 2010 US Census to make sure everyone is counted; she would participate on the North Dade Regional Library Panel for Black History Month; she was selected to work with the City of Miami on special tribute to James Brown; attended the Youth Prevention Task Force with Georgia Ayers and she

would be working with them on the plan for youth prevention; the city had over 5,000 hits on the internet for the President Barack Obama Street naming Dedication; and planning an appreciation brunch for the employees at no cost to the city.

She directed the City Manager and City Clerk to keep her abreast of monies coming in for the President Barack Obama Street naming Dedication Ceremony. Additionally, she was invited to Orlando for a special dedication in honor of President Barack Obama on March 4, 2009.

Vice Mayor Taylor reported that she would be working closely with the City Manager on Zone 1 and getting a park into the Nile Gardens area; the city is now ready to plant flowers on Burlington Street and is working closely with Public Works; taking an assessment of the Triangle area and meeting with Commissioner Jordan in order to get assistance with infrastructure to revitalize NW 22nd Avenue.

Commissioner Tydus attended the Broward County League of Cities Meeting and attended Carlos Alvarez's State of the County Address. She reported that she would be the keynote speaker at Assemble of God Church in Opa-locka in commemoration of Black History.

Commissioner Holmes congratulated Commissioner Johnson and all city employees on a job well done for the event honoring President Barack Obama and Starex Smith for the Black History Program at Sherbondy Park.

Vice Mayor Taylor thanked the Commission for allowing her to bring to light those veterans.

Mayor Kelley stated that he had the opportunity to be on a conference call with the National Conference of Black Mayor's in trying to work with small cities on the stimulus, and ultimately the money will wind up in Tallahassee and trickle down to Miami-Dade County. He said he was uncomfortable with the dates of March 2 & 3 as provided by the City Manager to travel to Tallahassee because the State of the State Address will be held on March 3, 2009. He suggested that the City Manager looked into traveling on March 9 & 10, 2009 to press the city's case. He expressed his concerns relating to the cost of airfare to Tallahassee.

He further expressed the importance of lobbying in Washington D.C. as well and said he would wait for the City Manager to provide that information to the Commission.

Mayor Kelley held his monthly Faith Based Initiative Meeting on Tuesday, February 24, 2009 with pastors and Community Based Organizations; he attended the funeral of former city employee, Larry Walton and attended the East Side/West Side of Perviz Crime Watch Meeting. Also, he is working with the Beacon Council to schedule a workshop to assist local businesses.

20. OFFICIAL BOARD APPOINTMENTS:

21. ADJOURNMENT:

There being no further business to come before the City Commission, it was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to adjourn the meeting at 9:50 p.m.

MAYOR

ATTEST:

CITY CLERK